

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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BRUCE PARKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER LUIS FERNANDEZ, shield number 17933, POLICE OFFICER ANZOR KURASHVILI, Shield number 10498, SERGEANT JOS BUONADONNA, and POLICE OFFICERS JOHN DOES #1-4 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

----- X

**SUMMONS**

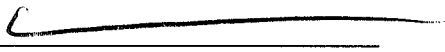
Index No.:

The Basis of Venue is:  
Location of IncidentPlaintiff designates New York  
County as the place of trial.**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
June 29, 2015

Yours, etc.

  
JACOBS & HAZAN, LLP.  
STUART E. JACOBS, ESQ.  
Attorney for Plaintiff  
11 Park Place, 10<sup>th</sup> Floor  
New York, New York 10007  
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER LUIS FERNANDEZ, shield number 17933  
POLICE OFFICER ANZOR KURASHVILI, Shield number 10498,  
SERGEANT JOS BUONADONNA

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BRUCE PARKER,

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THE CITY OF NEW YORK, POLICE OFFICER LUIS  
FERNANDEZ, shield number 17933, POLICE OFFICER  
ANZOR KURASHVILI, Shield number 10498,  
SERGEANT JOS BUONADONNA, and POLICE  
OFFICERS JOHN DOES #1-4 (names and number of  
whom are unknown at present), and other unidentified  
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Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

**JURY TRIAL DEMANDED**

Plaintiff BRUCE PARKER, by his attorneys, Jacobs & Hazan, LLP, as and for his  
Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 29, 2012 at approximately 3:40 p.m., plaintiff BRUCE PARKER, while lawfully present in Riverside Park, opposite 710 Riverside Drive, New York, New York, was subjected to an unlawful stop, question, frisk, search, false arrest and false imprisonment, and unlawful seizure by the defendant New York City police officers. Thereafter, plaintiff was transported to the 30<sup>th</sup> Precinct whereat he was subjected to an unlawful and highly intrusive strip search. The individually named defendant police officers provided the Manhattan District Attorneys' Office with false, misleading, and incomplete information regarding the facts and circumstances that led to plaintiff's arrest which caused an unlawful criminal prosecution to be initiated against plaintiff, without probable cause. The individually named defendant police officers maliciously prosecuted plaintiff, subjected plaintiff to the malicious abuse of process, denied plaintiff his right to due process and right to a fair trial pursuant to the Fifth Amendment to the United States Constitution. Additionally, as a direct and proximate cause of the false arrest and malicious prosecution of plaintiff, he was unlawfully seized and detained in New York City Department of Correction custody on Riker's Island from July 20, 2012 through November 22, 2013 on a Parole Hold. Plaintiff was acquitted of all charges on November 22, 2013. Plaintiff was deprived of his

constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, maliciously prosecuted, subjected him to malicious abuse of process, unlawfully strip searched plaintiff, and denied plaintiff the right to due process and the right to a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

### **PARTIES**

2. Plaintiff Bruce Parker is a resident of the state of New York.
3. Police Officer Luis Fernandez, shield number 17933, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Police Officer Luis Fernandez, shield number 17933 was at all times relevant herein, assigned to the 30th Precinct.
5. Police Officer Luis Fernandez, shield number 17933 is being sued in his individual and official capacity.
6. Police Officer Anzor Kurashvili, Shield number 10498, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Police Officer Anzor Kurashvili, Shield number 10498, was at all times relevant herein, assigned to the 30th Precinct
8. Police Officer Anzor Kurashvili, Shield number 10498, is being sued in his individual and official capacity.
9. Sergeant Jos Buonadonna is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Sergeant Jos Buonadonna, was at all times relevant herein, assigned to the 30th Precinct
11. Sergeant Jos Buonadonna is being sued in his individual and official capacity.
12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
13. Police Officers John Does #1-10 are being sued in their individual and official capacities.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

25. Thereafter, on June 29, 2012, the defendants transported plaintiff to the 30<sup>th</sup> precinct.

26. At no point in time did the defendant police officers have an objective reason to believe plaintiff secreted drugs, weapons or contraband underneath his clothing or inside of a body cavity.

27. Nevertheless, the individually named police officer defendants subjected plaintiff to an unlawful and intrusive strip search at the 30<sup>th</sup> Precinct.

28. Plaintiff was unlawfully fingerprinted and photographed at the 30<sup>th</sup> precinct and then detained in a filthy holding cell for many hours.

29. The individually named defendant police officers provided the Manhattan District Attorney's Office with false, misleading, and incomplete information regarding their basis for arresting plaintiff and charging him with crimes.

30. Plaintiff was transported from the 30<sup>th</sup> precinct to Manhattan Central Booking whereat he was detained in a holding cell with numerous other prisoners.

31. Plaintiff was arraigned on June 30, 2012 and at arraignment he was charged with criminal possession of a controlled substance in the Fourth Degree (PL 220.09(1)) and released on his own recognizance.

32. The individually named defendant police officers defendants initiated a prosecution against plaintiff without probable cause on June 30, 2012 by providing the Manhattan District Attorney's Office with false, misleading, and incomplete information regarding the facts that formed the basis for plaintiff's arrest and prosecution and the defendant officers swore to the false, misleading and incomplete facts in the criminal court complaint, causing the legal process against plaintiff to commenced at arraignment in New York County Criminal Court on June 30, 2012.

33. On July 19, 2012 plaintiff was unlawfully remanded and detained in New York City Department of Correction Custody because as a direct and proximate cause of plaintiff's arrest and prosecution, a Parole Hold was placed on plaintiff.

34. Plaintiff was detained by the New York City Department of Correction from July 19, 2012 through November 22, 2013 when he was released from custody

35. Plaintiff received psychological treatment while he was in Department of Correction custody because he was suffering from panic attacks as a direct and proximate cause of the underlying false arrest and malicious prosecution in this case

36. While plaintiff was in the custody of the New York City Department of Correction he was unlawfully forced to endure solitary confinement for approximately 90 days.

37. Plaintiff suffered additional emotional distress because he was unlawfully detained and placed in New York City Department of Correction custody approximately 1-2 weeks before his son's birthday and he missed his son's birthday while he was incarcerated at Riker's Island.

38. Additionally, plaintiff suffered emotional damages because his wife had to drop out of school and obtain a job to support their family while plaintiff was incarcerated in Department of Correction custody.

39. Plaintiff was forced to appear in Court on numerous occasions before all charges against plaintiff terminated in his favor and were dismissed on November 22, 2013.

40. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, unlawful strip search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of due process rights and the right to a fair trial.

41. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers fabricate allegations against an individual, to justify why an arrest of the individual was previously made.

42. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of a fair trial, and the use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights**

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, unlawfully strip searched, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth and Fifth Amendment

of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

## **SECOND CAUSE OF ACTION**

### **False Arrest and False Imprisonment**

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

## **THIRD CAUSE OF ACTION**

### **Unlawful Stop**

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The conduct of defendants in stopping, frisking, searching, assaulting and battering plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

## **FOURTH CAUSE OF ACTION**

### **Malicious Prosecution**

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

54. Defendants commenced and continued a criminal proceeding against plaintiff.

55. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

56. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

57. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

## **FIFTH CAUSE OF ACTION**

### **Violation of Plaintiff's Right to Due Process Under the Fifth**

#### **Amendment to the United States Constitution**

#### **Denial of the Right to a Fair Trial**

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Office of the Special Narcotics Prosecutor.

61. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Office of the Special Narcotics Prosecutor.

62. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Manhattan District Attorney's Office.

63. In withholding/creating false evidence against plaintiff Bruce Parker, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

64. As a result of the foregoing, plaintiff Bruce Parker, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

## **SIXTH CAUSE OF ACTION**

### **Malicious Abuse of Process**

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. Defendants issued legal process to place plaintiff Bruce Parker under arrest.

68. Defendants arrested plaintiff Bruce Parker in order to obtain a collateral objective outside the legitimate ends of the legal process.

69. Defendants acted with intent to do harm to plaintiff Bruce Parker, without excuse or justification.

70. As a result of the foregoing, plaintiff Bruce Parker sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.



defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

81. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

82. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

83. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

84. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

### **JURY DEMAND**

85. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

## **PRAYER FOR RELIEF**

**WHEREFORE**, plaintiff Bruce Parker demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
June 29, 2015

By:



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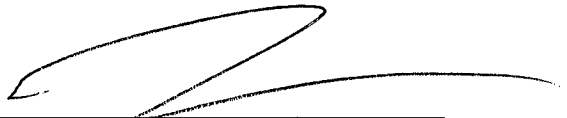
STUART E. JACOBS  
DAVID M. HAZAN  
JACOBS & HAZAN, LLP  
Attorneys for Plaintiff  
11 Park Place, 10<sup>th</sup> Floor  
New York, NY 10007  
(212) 577-2690

**ATTORNEY'S VERIFICATION**

**STUART E. JACOBS**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
June 29, 2015

  
\_\_\_\_\_  
STUART E. JACOBS